IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-513
CA (CAA) No. 38/230/232/ND/2021

IN THE MATTER OF:
Conscient Infrastructure Pvt Ltd ....**Applicant**
V/s.
Shilendra Pratap Sharma Singh & Ors ....**Respondent**

SECTION
U/s 230-232

Order delivered on 10.08.2021

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI K.K. VOHRA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

This is a case under Section 230-232 of Companies Act, 2013. A perusal of the papers submitted by the petitioner reveals that the amount of creditors (secured and unsecured) for which the consent have been obtained to seek dispensation of meetings of the creditors, is much lower than the amount of creditors shown in the provisional financials submitted by the petitioner in all the 3 Companies (2 Transferor Companies and 1 Transferee Company). Further, we find that although the petitioners have submitted provisional financials of September 2020, the Consent letters indicates the date of 30.11.2020.

The petitioner is directed to furnish the provisional financials as on 31.03.2021, take the figures of Creditors from there and submit the Consent letters of Creditors in case the dispensation of meetings of creditors is sought.

Petitioner is also advised to meet all other requirements of laws and regulations.

List the matter on **15.09.2021.**

-Sd-

(K.K. VOHRA)
MEMBER (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Chirag